

February 14, 2014



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16077

EXPIRATION DATE: May 31, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: SDV Logistique Internationale
Colomiers, France
(US Agent: SDV USA, Torrance, CA)
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one time transportation in commerce of the Astrium satellite Eutelsat 3B containing certain hazardous material in non-DOT specification packagings. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazard and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.300 and 172.400 in that marking and labeling of the packagings contained within the capsule is not required; § 172.101 Table Column (9B) in that anhydrous ammonia is forbidden on cargo aircraft; § 173.301 in that the non-DOT specification packaging is not fitted with a pressure relief device; and §§ 173.302a(a)(1), § 173.304a(a)(2) in that non-DOT specification packaging is not authorized, except as specified herein.

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5. BASIS: This emergency special permit is based on the application of SDV dated January 22, 2014, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia, anhydrous*	2.3	UN1005	N/A
Xenon, compressed	2.2	UN2036	N/A
Helium, compressed	2.2	UN1046	N/A
1,1,1,2-Tetrafluoroethane, Refrigerant gas (R134a)	2.2	UN3159	N/A
Igniters	1.4S	UN0454	II
Cartridges, power device	1.4S	UN0323	II
Lithium batteries contained in equipment	9	UN3481	II

*Division 2.3 for international transportation. Division 2.2 as an alternate when only domestic transportation is involved.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are non-DOT specification packagings which are installed in spacecraft or components of spacecraft and are overpacked in the transport container. The packagings are approved by the Competent Authority of France, under Approval CAE No. 13-020. Details of the packagings, components, and transport container and their Approval are as described in the information on file with the Office of Hazardous Materials Special Permits and Approval (OHMSPA).

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b. MARKING - The outer transport container must be plainly and durably marked on two opposite sides in letters at least 2 inches in height on a contrasting background, "DOT-SP 16077" and "DO NOT STACK" as specified in § 172.301(c).

c. OPERATIONAL CONTROLS:

(1) Transportation of the satellite contained in the transport container is authorized for the one time movement via cargo aircraft from Toulouse, France, to Long Beach International Airport, CA and via motor vehicle from Long Beach International Airport to the Port of Long Beach, CA.

(2) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that certain packagings within the satellite transport container (heat pipes) are not fitted with pressure relief devices and provide appropriate guidance in case of fire exposure.

(3) Two qualified and trained support personnel must be in attendance at all times during the transport operation. The transport vehicle must be attended at all times by a driver. Drivers must be trained in the dangers of the hazardous materials and measures to be taken in the event of an accident or emergency.

8. SPECIAL PROVISIONS: A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo only aircraft and motor vehicle used to transport packages covered by this special permit. The shipper shall furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR § 171.15 Immediate notice of certain hazardous materials incidents, and § 171.16 Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PTO: SS